

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Gregory Haynes	Team: Team # 4	CCRB Case #: 200510395	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Sunday, 09/04/2005 1:15 AM	Location of Incident: Sutter Avenue and Euclid Avenue	18 Mo. SOL 3/4/2007	Precinct: 75
Date/Time CV Reported Sun, 09/04/2005 4:10 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 09/04/2005 4:10 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			
2. POM Jason Sharp	16369	935731	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Bilal Ates	30040	934429	075 PCT
2. POM Angelo Petkovits	20425	935505	075 PCT
3. POM Keicho Phillips	31620	933175	077 PCT

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Force: An officer used physical force against § 87(2)(b)	A . Exonerated
B . POM Jason Sharp	Discourtesy: P. O. Jason Sharp spoke rudely to § 87(2)(b)	B . Unsubstantiated

Synopsis

On September 4, 2005, at 1:15 A.M., in the vicinity of Sutter Avenue and Euclid Avenue in Brooklyn, § 87(2)(b) § 87(2)(b) and § 87(2)(b) approached a waiting cab. At the same time, a police car containing P. O. Bilal Ates, P. O. Jason Sharp, and P. O. Angelo Petkovits arrived on patrol. Two officers assigned to the Cypress Projects, whose identities are unknown, were also in the area regarding an unrelated incident. § 87(2)(b) § 87(2)(b) had a bottle of alcohol and was stopped and placed in handcuffs by two of the officers assigned to the car. The officers escorted § 87(2)(b) § 87(2)(b) to their vehicle. § 87(2)(b) § 87(2)(b) started yelling at the officers and began to approach their vehicle. As § 87(2)(b) § 87(2)(b) was asking the officers why § 87(2)(b) § 87(2)(b) was being arrested, one of the housing officers allegedly took her by the right arm above the elbow and pushed her against a police car (*Allegation a - force*). § 87(2)(b) § 87(2)(b) was issued a summons for § 87(2)(b) § 87(2)(b). § 87(2)(b) § 87(2)(b) alleged that as he was arguing the validity of the ticket, P. O. Sharp told him to, "shut up" (*Allegation b - discourtesy*).

§ 87(2)(b) § 87(2)(b) filed this complaint under the name § 87(2)(b) § 87(2)(b) however, it was determined through the investigation that his legal name is § 87(2)(b) § 87(2)(b). As such, § 87(2)(b) § 87(2)(b) will be referred to as § 87(2)(b) § 87(2)(b) throughout this closing report.

§ 87(2)(b) § 87(2)(b) has not cooperated with repeated attempts to have her view a photo array of potential subject officers and the identity of the officer who pushed her is unknown. § 87(2)(g) § 87(2)(g)

§ 87(2)(b) § 87(2)(b) it is recommended that *allegation a*, which is being pleaded against an officer, be **exonerated**. § 87(2)(g) § 87(2)(g) it is recommended that *allegation b* be closed as **unsubstantiated**.

Summary of Complaint

§ 87(2)(b) § 87(2)(b) has provided three accounts of the incident. The first was § 87(2)(b) § 87(2)(b)'s intake statement made via the CCRB call processing system on September 4, 2005 (enc. 5B). The second was § 87(2)(b) § 87(2)(b)'s initial statement on September 12, 2005 (enc. 6A). The third was § 87(2)(b) § 87(2)(b)'s formal interview on September 14, 2005 (enc. 7B). § 87(2)(g) § 87(2)(g)

On September 4, 2005, at 1:15 A.M., in the vicinity of Sutter Avenue and Euclid Avenue in Brooklyn, § 87(2)(b) § 87(2)(b) and her boyfriend § 87(2)(b) § 87(2)(b) were in the process of approaching a taxicab on the way to a party. A patrol car containing three officers who the investigation determined to be P. O. Bilal Ates, P. O. Jason Sharp, and P. O. Angelo Petkovits arrived at the scene. Other officers arrived on foot from the Cyprus Housing Projects in response to a fight on the corner.

§ 87(2)(b) § 87(2)(b) had closed the door to his house and held an unopened bottle of liquor. When he saw the three officers in the patrol car arrive, he began to enter the building. P. O. Sharp and P. O. Ates ran past § 87(2)(b) § 87(2)(b) told § 87(2)(b) § 87(2)(b) to, "Come here," and asked why he was going back into the building. § 87(2)(b) § 87(2)(b) informed the officers that the bottle of alcohol was unopened, but was worried he would still get a ticket for possessing it. P. O. Petkovits rear cuffed § 87(2)(b) § 87(2)(b) and searched his pockets.

While § 87(2)(b) § 87(2)(b) was in the process of asking the officers what happened, an unidentified black male uniformed officer from the Cypress Projects took § 87(2)(b) § 87(2)(b) by the right arm above the elbow and pushed her nine, causing her to strike the back of the patrol car.

§ 87(2)(b) § 87(2)(b) went into the house and her cousin § 87(2)(b) § 87(2)(b) [whose last name was not provided by § 87(2)(b) § 87(2)(b)] told § 87(2)(b) § 87(2)(b) that the officers wanted § 87(2)(b) § 87(2)(b) identification. § 87(2)(b) § 87(2)(b) went downstairs with the identification and § 87(2)(b) § 87(2)(b) accompanied him with a pen and paper. § 87(2)(b) § 87(2)(b) wrote down the car number and badge number of P. O. Ates. However, the officer that pushed § 87(2)(b) § 87(2)(b) left the scene. After § 87(2)(b) § 87(2)(b) identification was checked, he was released with a summons § 87(2)(b) § 87(2)(b)

Results of Investigation

Civilian Witnesses:

§ 87(2)(b) § 87(2)(b) was formally interviewed with regards to this incident (enc. 9B). However, § 87(2)(b) could not be located as § 87(2)(b) did not provide § 87(2)(b) ' last name or his contact information.

§ 87(2)(b) § 87(2)(b) has made two statements regarding this incident. The first was his initial statement to the CCRB made via telephone on September 8, 2005 (enc. 8A) and the second was his formal interview statement on September 15, 2005 (enc. 9B). There are no significant discrepancies in any of his statements.

On September 4, 2005, at 1:15 A.M. in the vicinity of Sutter Avenue and Euclid Avenue in Brooklyn, § 87(2)(b) § 87(2)(b) and his girlfriend, § 87(2)(b) were preparing to approach a waiting taxicab. § 87(2)(b) was locking the door to his apartment and had an unopened bottle of Grey Goose Vodka underneath his arm. A patrol car that the investigation determined contained P. O. Bilal Ates, P. O. Jason Sharp, and P. O. Angelo Petkovits parked in front of § 87(2)(b) § 87(2)(b) house. Two unidentified uniformed officers arrived at the location on foot from the Cypress Housing Projects.

§ 87(2)(b) § 87(2)(b) began to unlock the door to his apartment building because he wanted to, "avoid police contact." P. O. Sharp and P. O. Ates ran past § 87(2)(b) § 87(2)(b) grabbed § 87(2)(b) § 87(2)(b) arms, and took his bottle of alcohol. P. O. Ates rear cuffed § 87(2)(b) § 87(2)(b) but did not search him. § 87(2)(b) § 87(2)(b) asked why § 87(2)(b) § 87(2)(b) was being arrested and a dark skinned officer grabbed both of § 87(2)(b) § 87(2)(b) s arms from the front and pushed her out of the way. § 87(2)(b) § 87(2)(b) shouted a request to a neighbor to have her mother bring down a pen and paper. However, the officer left the scene before § 87(2)(b) § 87(2)(b) had obtained the pen and paper to write down the badge number of the officer who pushed her.

§ 87(2)(b) § 87(2)(b) was taken to the police car and § 87(2)(b) § 87(2)(b) s mother brought down § 87(2)(b) § 87(2)(b) identification. While § 87(2)(b) § 87(2)(b) was in the car, P. O. Sharp came to the car with the vodka bottle, poured some vodka on the ground, and said, "It's opened." § 87(2)(b) § 87(2)(b) argued that P. O. Sharp opened the bottle and was told by P. O. Sharp to, "shut up." The officers ran a warrant check on § 87(2)(b) § 87(2)(b) and released him with a summons § 87(2)(b) § 87(2)(b)

Attempts to Schedule a Photo Array

In order to identify the subject officer of *allegation a*, photographs of potential subject officers were obtained so that § 87(2)(b) § 87(2)(b) and § 87(2)(b) § 87(2)(b) could view a photo array. On February 23, 2006, § 87(2)(b) § 87(2)(b) scheduled an appointment to look at photographs for February 27, 2006. However, § 87(2)(b) § 87(2)(b) later left a voicemail on February 23, 2006, stating that it was "not fair" to ask her to view photographs so long after the incident. § 87(2)(b) § 87(2)(b) and § 87(2)(b) § 87(2)(b) were left messages requesting they contact the CCRB on three different days after that message was received and each were mailed a "photo array letter." To date, neither § 87(2)(b) § 87(2)(b) nor § 87(2)(b) § 87(2)(b) has contacted the CCRB and the letters mailed to them have not been returned to the agency, which indicates that the letters were correctly addressed. § 87(2)(g) § 87(2)(g)

§ 87(2)(b) § 87(2)(b) this allegation is being pleaded against an officer.

Officer Identification:

P. O. Bilal Ates was identified as being at the location by the badge number provided by § 87(2)(b) § 87(2)(b) and is the officer who wrote § 87(2)(b) § 87(2)(b) his summons (enc. 11A). The Tour 1 Roll Call of the 75th Precinct for September 4, 2005 (enc. 20C) illustrates that P. O. Ates was assigned to conditions for that tour and that P. O. Jason Sharp and P. O. Angelo Petkovits were also assigned to conditions. P. O. Ates identified his partners for the day as being P. O. Jason Sharp and P. O. Angelo Petkovits (enc. 12B). § 87(2)(b) § 87(2)(b) said that he was told to "shut up," by a white bald officer assigned to a car and P. O. Sharp was the only white bald officer identified as being involved with this incident. P. O. Keicho Phillips of the 77th Precinct is listed on the PSA 2 Roll Call for the incident date as working in the Cypress Housing Projects (enc. 19G). § 87(2)(g) § 87(2)(g)

P. O. Bilal Ates

On October 21, 2005, P. O. Bilal Ates was formally interviewed at the CCRB (enc. 12B). P. O. Ates had no entry in his memo book regarding this incident (enc. 10B – 10D).

On September 4, 2005, at approximately 1:15 A.M., in the vicinity of Sutter Avenue and Euclid Avenue in Brooklyn, P. O. Ates was working with P. O. Angelo Petkovits and P. O. Jason Sharp in a marked patrol car. P. O. Ates observed § 87(2)(b) § 87(2)(b) on the sidewalk in front of an apartment building drinking Barcardi that was not in a bag and in plain sight. P. O. Ates requested that § 87(2)(b) § 87(2)(b) come over to the patrol car, but § 87(2)(b) § 87(2)(b) “fiddled with his keys,” to enter the street entrance of a building. P. O. Ates approached § 87(2)(b) § 87(2)(b) with his partners behind him. P. O. Ates requested that § 87(2)(b) § 87(2)(b) not enter the building, but § 87(2)(b) § 87(2)(b) began to enter the doorway of the building anyway. P. O. Ates grabbed § 87(2)(b) § 87(2)(b) left hand and asked him to come out. P. O. Ates explained to § 87(2)(b) § 87(2)(b) that he was only going to be issued a summons, but § 87(2)(b) § 87(2)(b) started yelling and attempted to close the door on P. O. Ates’ arm. P. O. Ates pulled § 87(2)(b) § 87(2)(b) out of the doorway. P. O. Sharp handcuffed § 87(2)(b) § 87(2)(b) and patted him down on the outside of his pockets before placing him in handcuffs. As P. O. Sharp was doing this, P. O. Ates grabbed the Barcardi bottle. P. O. Ates said that once § 87(2)(b) § 87(2)(b) understood he was just going to receive a summons § 87(2)(b) § 87(2)(b), he calmed down.

§ 87(2)(b) § 87(2)(b) girlfriend, § 87(2)(b) § 87(2)(b) arrived once § 87(2)(b) § 87(2)(b) was placed in handcuffs. § 87(2)(b) § 87(2)(b) threatened to slap P. O. Ates and began cursing at the officers. P. O. Ates tried to explain to § 87(2)(b) § 87(2)(b) that § 87(2)(b) § 87(2)(b) was not going to be arrested. As the officers were escorting § 87(2)(b) § 87(2)(b) to the police car to check for outstanding warrants, § 87(2)(b) § 87(2)(b) tried to get between § 87(2)(b) § 87(2)(b) and P. O. Ates. § 87(2)(b) § 87(2)(b) also grabbed P. O. Ates’ right arm numerous times and tried to pull him off § 87(2)(b) § 87(2)(b) as well as tried to yank § 87(2)(b) § 87(2)(b) away from the officer. A black heavyset officer from PSA 2, who P. O. Ates could not identify and was in the area for an unrelated incident, instructed § 87(2)(b) § 87(2)(b) to move away and to not interfere with a police matter. The officer then pushed § 87(2)(b) § 87(2)(b) out of the way, but § 87(2)(b) § 87(2)(b) did not hit the patrol car. § 87(2)(b) § 87(2)(b) s mother came to the location and brought § 87(2)(b) § 87(2)(b) into the building.

§ 87(2)(b) § 87(2)(b) was given a summons § 87(2)(b) § 87(2)(b) and released. At the conclusion of the interview, P. O. Ates said that there was no need to tell § 87(2)(b) § 87(2)(b) to be quiet because § 87(2)(b) § 87(2)(b) calmed down once he realized that he would receive a summons. P. O. Ates also said that he did not tell § 87(2)(b) § 87(2)(b) to, “shut up.”

P. O. Jason Sharp

P. O. Jason Sharp was interviewed at the CCRB on December 8, 2005 (enc. 14B). He had no entries in his memo book regarding this incident (enc. 13 B – 13C).

P. O. Sharp provided a similar narrative as P. O. Ates. However, P. O. Sharp attributed § 87(2)(b) § 87(2)(b) being placed in handcuffs to his lack of identification. P. O. Sharp also did not provide a detailed account of a struggle with § 87(2)(b) § 87(2)(b) unlike P. O. Ates. P. O. Sharp stated that initially § 87(2)(b) § 87(2)(b) cooperated with the officers and provided § 87(2)(b) § 87(2)(b) identification so that he could be released with a summons after the performance of a warrant check. However, § 87(2)(b) § 87(2)(b) started yelling at the officers when they brought § 87(2)(b) § 87(2)(b) to the patrol car to run the warrant check. P. O. Sharp said two housing officers who he did not know arrived to control § 87(2)(b) § 87(2)(b) and the crowd that was forming. P. O. Sharp did not see if § 87(2)(b) § 87(2)(b) was pushed because he was focussed on running the warrant check. § 87(2)(b) § 87(2)(b) was released with a summons upon completion of the warrant check. P. O. Sharp stated that § 87(2)(b) § 87(2)(b) was not told to shut up.

P. O. Angelo Petkovits

P. O. Angelo Petkovits was interviewed at the CCRB on December 8, 2005 (enc. 16B). He had no entries in his memo book regarding this incident (15B – 15C).

P. O. Petkovits provided a similar narrative to P. O. Ates. P. O. Petkovits described P. O. Ates placing § 87(2)(b) § 87(2)(b) in handcuffs after he fled from the officers. P. O. Petkovits also said that either P. O. Sharp or himself patted § 87(2)(b) § 87(2)(b) down. P. O. Petkovits stated that § 87(2)(b) § 87(2)(b) then provided the officers with § 87(2)(b) § 87(2)(b) identification so that a warrant check could be performed, but yelled at the officers when they brought § 87(2)(b) § 87(2)(b) to their patrol car to conduct the warrant check. P. O. Petkovits said two housing officers, who he did not know, stood between § 87(2)(b) § 87(2)(b) and the officers’ car as they conducted the warrant check. P. O. Petkovits did not see § 87(2)(b) § 87(2)(b) s interaction with the housing officers, but did not think § 87(2)(b) § 87(2)(b) was pushed. § 87(2)(b) § 87(2)(b) was released with a summons. At the

§ 87(2)(g)

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Allegation A - An officer used physical force against § 87(2)(b)

§ 87(2)(g)
§ 87(2)(b) In *PD v Stiso* (oath index 1886/99 enc. 1A) it was ruled that a police officer's use of force must be, "manifestly unreasonable," in order to be construed as misconduct. § 87(2)(g)

§ 87(2)(g) it is recommended that
allegation a be **exonerated**

Allegation B - P. O. Jason Sharp spoke rudely to § 87(2)(b) § 87(2)(b)

§ 87(2)(b) described an officer matching P. O. Sharp's description telling him to "shut up" after he received the summons. P. O. Bilal Ates, P. O. Jason Sharp, and P. O. Angelo Petkovits all stated that by the time § 87(2)(b) received his summons, he had calmed down and no officer told § 87(2)(b) to shut up. § 87(2)(g)

§ 87(2)(g) it is recommended that this
allegation be closed as **unsubstantiated**.

Allegations Not Pledged:

While § 87(2)(b) stated that the officers entered § 87(2)(b) pockets, § 87(2)(b) said that he was not searched or frisked. P. O. Bilal Ates, P. O. Jason Sharp, and P. O. Angelo Petkovits all state that the officers patted down § 87(2)(b) but did not enter his pockets. § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: